

		of the second paragraph on the section entitled "What is this case about?" on page 1. See Hawkins Decl. (ROA 215) Ex. 1 (¶ 1.19); c. To remove the extra "\$" in subsection a. at the top of page 2; and d. To correct the Net Settlement Amount and the amounts to be paid to the LWDA and the aggrieved employees stated in subsections c. and d. on page 2. The final accounting hearing is scheduled for <u>December 17, 2026 at 9:00 a.m.</u> in Department CX105. Plaintiffs shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service.
6	Little v. Quality Management Group, Inc. 2023-01325038	<u>Defendant Quality Management Group, Inc.'s Motion to Seal</u> Defendant Quality Management Group, Inc. moves to seal portions of a settlement agreement between plaintiff Amber Little and defendant Quality Management Group, Inc., which defendant lodged conditionally under seal in support of plaintiff's motion approval of a PAGA settlement. For the following reasons, defendant's motion to seal is denied. Unless confidentiality is required by law, court records are presumed to be open. Cal. R. Ct. 2.550(c). A record must not be filed under seal without a court order. Cal. R. Ct. 2.551(a). The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties. <i>Id.</i> A party requesting that a court record be filed under seal "must file a motion or an application for an order sealing the record." Cal. R. Ct. 2.551(b)(1). "The motion or application must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing." <i>Id.</i> A court may order a record be filed under seal only if the court expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest. Cal. R. Ct. 2.550(d). An order sealing a record must specifically state the facts that support the findings, and direct the sealing of only those documents and pages, or, if reasonably practicable, portions of those documents and pages, that contain the material that needs to be

		placed under seal. Cal. R. Ct. 2.550(e)(1). All other portions of each document or page must be included in the public file. <i>Id.</i> Defendant's counsel's declaration accompanying the motion to seal states that portions of the settlement agreement should be sealed because (i) "[t]he Confidential Settlement Agreement . . . is a <i>confidential</i> document as is the amount of the settlement consideration"; (ii) "[t]he Parties' interest in protecting the sensitive and confidential information contained in the Parties' confidential settlement agreement overrides the public's interest in access to the records Defendant seeks to seal"; and (iii) "[t]he information cannot be adequately guarded short of sealing the confidential settlement agreement[] and there are no less restrictive means to achieve the overriding interest." Greving Decl. (ROA 123) ¶¶ 7-8 (<i>italics in original</i>). The reasons stated in counsel's declaration as purported support for sealing portions of the settlement agreement are conclusions, not facts. Counsel's declaration does not state facts sufficient to justify sealing the settlement agreement. In addition, as stated above, a court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties. Cal. R. Ct. 2.551(a); <i>see also McNair v. National Collegiate Athletic Ass'n</i> (2015) 234 Cal.App.4th 25, 36 ("the mere agreement of the parties alone is insufficient to constitute an overriding interest to justify sealing the documents"). Furthermore, a settlement agreement that has a confidentiality provision cannot be sealed unless there is a showing of serious injury which would result from public disclosure. <i>Universal City Studios, Inc. v. Superior Court</i> (2003) 110 Cal.App.4th 1273, 1281-82. Defendant has not submitted any evidence that serious injury would result from public disclosure of the settlement agreement. Defendant's motion does not provide a sufficient evidentiary basis for the court to make the required findings to seal the settlement agreement or to conclude that the settlement agreement filed in support of defendant's motion for approval of a PAGA settlement should be shielded from public view. <i>See, e.g., Overstock.com, Inc. v. Goldman Sachs Group, Inc.</i> (2014) 231 Cal.App.4th 471, 487 ("If the trial court fails to make the required findings, the order is deficient and cannot support sealing"). Defendant to give notice.
7	Ossipoff v. SoulCycle Inc. 2020-01146813	<u>Plaintiff Alexandra Ossipoff's Motion for Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$900,000 class action and PAGA settlement. The court has the following questions and comments: 1. What "Motion" is referred to in paragraph 7 of the Third Amendment? Third Supp. Chavos Decl. (ROA 356) Ex. H (¶ 7, at 6:20)?